

Wilson Estate Probate Proceedings

This matter concerns the probate of the estate of deceased testator Harold Wilson, who passed away on January 15, 2023. The decedent left a will dated March 10, 2020, naming his daughter Jennifer Wilson as executor and primary beneficiary. The decedent's son, Robert Wilson, contests the will, alleging undue influence and lack of testamentary capacity. The contestant alleges that at the time of will execution, the decedent was suffering from dementia and was unduly influenced by his daughter, who had power of attorney and controlled access to the decedent. The contestant seeks to invalidate the will and distribute the estate according to intestacy laws. The proponent of the will presented testimony from the attorney who drafted the will, the decedent's physician, and other witnesses attesting to the decedent's mental capacity and independent decision-making. Medical records show the decedent was competent at the time of will execution. After careful review of all evidence and testimony, the court finds the contestant has failed to meet the burden of proof to invalidate the will. The evidence supports that the decedent had testamentary capacity and was not subject to undue influence. The will is admitted to probate and the named executor is authorized to administer the estate according to its terms.